

Nonproliferation Nuclear Act, 2025

Act No. XX of 2025

Enacted by the House of Representatives of the Members of Union

Presented in the TREDT Legislative House

PREAMBLE

An Act to ensure the peaceful use of nuclear energy, prevent the spread of nuclear weapons and related technologies, strengthen international cooperation, and provide a legal framework for oversight, transparency, and enforcement.

CHAPTER I — Preliminary

1. Short Title and Commencement

This Act may be called the *Nonproliferation Nuclear Act, 2025* and shall come into force on such date as the President of Union may, by notification in the Official Gazette, appoint.

2. Definitions

In this Act, unless the context otherwise requires:

- "Nuclear Weapon"** means any explosive device relying on nuclear fission or fusion.
 - "Nuclear Material"** includes plutonium, uranium-233, uranium enriched in isotope 235 or 233, and other materials as prescribed.
 - "Peaceful Nuclear Use"** refers to generation of electricity, medical applications, research, and agricultural advancements.
 - "Authority"** means the *Union Nuclear Oversight Commission (UNOC)* established under this Act.
 - "Member State"** means a state or territory recognized under the Constitution of Union.
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CHAPTER II — Prohibition and Control

3. Prohibition on Development and Possession of Nuclear Weapons

No person, company, or state agency shall develop, possess, acquire, transfer, or test a nuclear weapon or component thereof.

4. Prohibition on Transfer of Nuclear Technology

Transfer of sensitive nuclear technologies or designs to any foreign entity or unauthorized domestic body is strictly prohibited.

5. Licensing for Peaceful Use

No entity shall engage in nuclear research or energy production without a license from UNOC. All facilities must undergo regular inspections.

CHAPTER III — Oversight and Monitoring

6. Establishment of Union Nuclear Oversight Commission (UNOC)

(1) A commission shall be established comprising five members appointed by the President of Union in consultation with the Council of Scientific Affairs.

(2) UNOC shall:

- Issue licenses for nuclear use.
- Monitor nuclear facilities.
- Enforce compliance with this Act and international treaties.

7. National Registry of Nuclear Materials

All nuclear materials shall be accounted for in a centralized registry maintained by UNOC and subject to periodic audits.

8. Inspections and Surveillance

UNOC inspectors may conduct surprise inspections of any facility, research center, or reactor within Union territory.

CHAPTER IV — Penal Provisions

9. Offenses and Penalties

- Unauthorized possession of nuclear materials: **Imprisonment up to 25 years and fine up to ₹50 crore (or equivalent currency)**
- Development or testing of nuclear weapons: **Life imprisonment**
- Obstruction of inspection: **Imprisonment up to 10 years**

10. Extraterritorial Jurisdiction

This Act shall apply to citizens of the Union committing offenses outside the national territory.

CHAPTER V — International Cooperation

11. Treaties and Agreements

The Union shall uphold its commitment to international treaties such as the Non-Proliferation Treaty (NPT), Comprehensive Nuclear-Test-Ban Treaty (CTBT), and collaborate with IAEA and allied states.

12. Export Controls

Export of nuclear-related materials, equipment, or technology shall be governed by rules framed under this Act and in alignment with international norms.

CHAPTER VI — Miscellaneous

13. Power to Make Rules

The Union Cabinet, in consultation with UNOC, may frame rules and regulations necessary to implement this Act.

14. Act to Prevail over Other Laws

In case of inconsistency, the provisions of this Act shall prevail over any other law.

15. Annual Report to Legislature

UNOC shall submit an annual report on nuclear activities, compliance, and enforcement status to the TREDT Legislative House.

Passed on: 17th April, 2025

By Order of the House of Representatives of the Members of Union